

1. 9:00 AM CASE NUMBER: C22-02106
CASE NAME: ALALUSI FOUNDATION VS. MALAK TAHSIN
HEARING ON SUMMARY MOTION JUDGMENT
FILED BY: TAHSIN, MALAK IBRAHIM

TENTATIVE RULING:

Before the Court is Defendant Malak Ibrahim Tahsin's Motion for Summary Judgment, or in the Alternative, Summary Adjudication. Plaintiff's complaint alleges a single cause of action for Breach of Contract.

Plaintiff's Request for Judicial Notice of the Complaint in this matter is **granted**. (Evid. Code § 452 (d).)

For the following reasons, the Motion for Summary Judgment is **continued until April 10, 2026**, for additional briefing, as outlined below.

Factual and Procedural Background

This matter pertains to an alleged breach of contract by Defendant. On or about November 2, 2012, Plaintiff entered into a "Contract Agreement and Oath" ("Contract") with Defendant Malak Ibrahim Tahseen (sic) and non-party Ibrahim Tahseen (sic), who is Defendant Tahsin's father. (Malak Tahsin Decl. Ex. A.) [As Ibrahim Tahsin is not a party to this action, references to "Defendant" or "Tahsin" will refer to Malak Tahsin.] At that time, Defendant, an Iraqi national, was living and going to school in Jordan. (*Ibid.*)

The Contract indicated that Plaintiff would provide a loan to Defendant for education related expenses while she was in school. (*Ibid.*) Defendant was to start repaying the loan "after graduation." (*Id.* at ¶ 3, 5.) Specifically, the Contract states:

After graduation of the [Defendant], he must repay the loan amount in full and in the form of payments, the father of the [Defendant], Mr. Ibrahim Tahseen shall be included with the [Defendant] in this commitment. (*Id.* ¶ 5.)

Defendant graduated from medical school in Jordan on May 7, 2018. (Tahsin Decl., Ex. C.) After graduating, Defendant immediately obtained employment at an obstetrician and gynecologist office in Amman, Jordan. (*Id.* at ¶ 11.) In September of 2018, Defendant was forced to leave Jordan due to the political climate. (¶ 12.) She moved to the United States and lived with her aunt in Texas from October until December 2018 – with a brief visit to Mr. Alalusi's residence in California in between. (¶¶ 13-16.)

In December 2018, she moved to California and rented an apartment attached to Mr. Alalusi's house. (¶ 16, Ex. E.) Defendant's father paid the rent on her behalf. (¶ 17.)

In 2020, Defendant began working for Mr. Alalusi's company – Pressure Grout Company. (¶ 18.) She

also began working at Diacarta, where she worked from 2020 to mid-2023. (¶ 18-19.) At no time did Defendant make any payments related to the loan set forth in the Contract.

Plaintiff filed its Complaint for Breach of Contract on October 3, 2022. The Complaint does not attach a copy of the Contract, nor quote any portions thereof. The Complaint alleges, in pertinent part:

“On or about November 2, 2012, the Plaintiff and the Defendant entered into a written loan agreement (“Contract”). The Contract was negotiated and memorialized in writing in the parties first language, Arabic. (¶10 emphasis added.)

The Complaint alleges that Defendant attended medical school in Amman, Jordan and graduated in June 2018. (¶ 14.) In total, Defendant is alleged to have borrowed \$83,225. (*Ibid.*) After the Court overruled Defendant’s demurrer to the Complaint, she filed an Answer on March 20, 2023.

Standard

The party moving for summary judgment has the burden of persuasion to show there is no triable issue of material fact and thus it is entitled to judgment as a matter of law. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) Only if the moving party successfully meets this burden does the burden shift to the opposing party to make its own prima facie showing of the existence of a triable issue of material fact. (*Ibid.*; see also *Chern v. Bank of America* (1976) 15 Cal.3d 866, 873.) “In ruling on the motion, the court must consider all of the evidence and all of the inferences reasonably drawn therefrom, and must view such evidence and such inferences, in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843 (internal citations and quotations omitted); see also, Code of Civ. Proc. §437c(c).)

The pleadings define the scope of Plaintiffs' claims for purposes of a defendant moving for summary judgment. (*Teselle v. McLoughlin, supra*, 173 Cal.App.4th 156, 161 [“‘The complaint measures the materiality of the facts tendered in a defendant's challenge to the plaintiff's cause of action.’ [Citation omitted.],” quoting *FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381].)

Analysis

“The standard elements of a claim for breach of contract are ‘(1) the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) damage to plaintiff therefrom.’” (*Wall Street Network, Ltd. v. New York Times Co.* (2008) 164 Cal.App.4th 1171, 1178, citations omitted.)

Defendant moves for summary judgment based on several arguments: (1) statute of limitations, (2) the statute of frauds, (3) failure to join an indispensable party, and (4, 5) Plaintiff’s inability to legally provide private student loans. (Statement of Issues.)

While not listed as a basis for this motion, Defendant also contends, in her Introduction, that the Contract lacks essential terms, including: (1) the total amount of the loan, (2) a repayment schedule or method, (3) identification of the educational institution, (4) notarization or certification by any authority in Jordan, and (5) any reference to Plaintiff’s legal authority to issue or service student loans. (MSJ at 7:19-24.)

Before the Court can attempt to address Defendant’s stated arguments regarding the validity of

Plaintiff's breach of contract cause of action, there must be an enforceable contract.

Enforceable Contract?

"Under California law, a contract will be enforced if it is sufficiently definite (and this is a question of law) for the court to ascertain the parties' obligations and to determine whether those obligations have been performed or breached." (*Bustamante v. Intuit, Inc.* (2006) 141 Cal.App.4th 199, 209 quoting *Ersa Grae Corp. v. Fluor Corp.* (1991) 1 Cal.App.4th 613, 623.) "To be enforceable, a promise must be definite enough that a court can determine the scope of the duty[,] and the limits of performance must be sufficiently defined to provide a rational basis for the assessment of damages." (*Ibid.* citations omitted.) "Where a contract is so uncertain and indefinite that the intention of the parties in material particulars cannot be ascertained, the contract is void and unenforceable." (*Ibid.* citations omitted.)

"The terms of a contract are reasonably certain if they provide a basis for determining the existence of a breach and for giving an appropriate remedy." (*Ibid.*) "But '[i]f ... a supposed 'contract' does not provide a basis for determining what obligations the parties have agreed to, and hence does not make possible a determination of whether those agreed obligations have been breached, there is no contract.'" (*Ibid.*)

The Contract at issue here is an alleged loan from Plaintiff to Defendant. "Typically, a contract involving a loan must include the identity of the lender and borrower, the amount of the loan, and the terms for repayment in order to be sufficiently definite." (*Westlands Water Dist. V. All Persons Interested* (2023) 95 Cal.App.5th 98, 127 quoting *Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1174, disapproved on other grounds in *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 948, fn. 12; see also; *Peterson Dev. Co. v. Torrey Pines Bank*, 233 Cal.App.3d 103, 115 ["The material terms of a loan include the identity of the lender and borrower, the amount of the loan, and the terms for repayment."].)

As noted by Defendant in their Introduction, the Contract at issue does not appear to include (1) the amount at issue, nor (2) the terms for repayment (*i.e.* a repayment schedule or method.) As such, the Contract appears indefinite and unenforceable. This impact the Court's ability to rule on the actual grounds asserted by Defendant, for example the statute of limitations issue. Unless the terms for repayment can be determined, the Court cannot determine when the statute of limitations would begin to run.

Neither party has fully briefed the issue of the existence of valid and enforceable contract in the first instance, since the MSJ was not made on the ground. If the Court wanted to potentially rule on the issue of the existence of an enforceable contract, the case law appears to allow the Court to continue the hearing and provide the opposing party (Plaintiff) time to present additional evidence and authorities on that issue.

Consistent with the purpose of the summary judgment statute, we conclude that the trial court has the inherent power to grant summary judgment on a ground not explicitly tendered by the moving party when the parties' separate statements of material facts and the evidence in support thereof demonstrate the absence of a triable issue of material fact put in issue by the pleadings and negate the opponent's

claim as a matter of law. (*Cf. Cottle v. Superior Court* (1992) 3 Cal.App.4th 1367, 1377; *Weiss v. Chevron, U.S.A., Inc.* (1988) 204 Cal.App.3d 1094, 1098-1099; *Johnson v. Banducci* (1963) 212 Cal.App.2d 254, 260; *see also Bauguess v. Paine* (1978) 22 Cal.3d 626, 635.)

However, when the trial court grants a summary judgment motion on a ground of law not explicitly tendered by the moving party, due process of law requires that the party opposing the motion must be provided an opportunity to respond to the ground of law identified by the court and must be given a chance to show there is a triable issue of fact material to said ground of law.

Otherwise, a party which could have shown a triable issue of material fact put in issue by the complaint or answer but neglected to do so because the point was not asserted by the moving party as a ground for summary judgment would be deprived unjustly of the chance to demonstrate the existence of a triable issue of material fact which requires the process of trial.

(*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 70-71; *County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 325 citing *Juge* with approval; *Lynch v. Peter & Associates etc.* (2024) 104 Cal.App.5th 1181, 1196 recognizing *Juge*'s viability.)

Conclusion

Based on the above, the Court continues the hearing on Defendant's MSJ to allow for additional briefing on the validity of the Contract. The briefing schedule is as follows:

- Defendant's opening papers – due on or before Friday, March 6. (10 pages max.)
- Plaintiff's opposition papers – due on or before Friday, March 20. (10 pages max.)
- Defendant's reply papers – due on or before Friday, March 27. (5 pages max.)

The hearing is continued until **Friday, April 10, 2026**. The briefing is limited to the existence of a valid and enforceable contract.

2. 9:00 AM CASE NUMBER: C22-02691
CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD
***HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLTFS 1ST AMENDED COMPLAINT**
FILED BY: MAMPALAM, THOMAS J, MD
TENTATIVE RULING:

Defendant Thomas J. Mampalam, M.D. brings a demurrer and motion to strike challenging plaintiff Duncan Mackenzie Miller's First Amended Complaint. The demurrer is **sustained with respect to the first and third causes of action**. The demurrer is **overruled** with respect to the second and fourth causes of action. The motion to strike is **granted with respect to attorneys fees**, as discussed below. Plaintiff has leave to file an amended complaint on or before February 23, 2026.